

TENTATIVE RULINGS

DEPARTMENT N17

Judge Craig L. Griffin

Date: August 24, 2026

Time: 2:00 PM

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1	Clapp v. ARA Properties, LLC, et. al.	Before the Court is a Demurrer by defendants ARA Properties, LLC, Anita Varela, Ralph Varela and Lisa Varela to the complaint filed by plaintiff Elizabeth Clapp. The demurrer is SUSTAINED with 14 days leave to amend as to the 1st, 2nd, 4th-16th, and 18th – 20th causes of action. The demurrer is SUSTAINED without leave to amend as to the 3rd and 17th causes of action. The role of a demurrer is "to test the legal sufficiency of a complaint." (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994, citations omitted.) A demurrer challenges the defects appearing on the face of the pleading or from other matters properly subject to judicial notice. (See Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (Cundiff v. GTE Cal., Inc. (2002) 101 Cal.App.4th 1395, 1404-1405.) <u>1st & 2nd Causes of Action: Corp. Code §17704.09</u> Corp. Code §17704.09(a) provides: "(a) The fiduciary duties that a member owes to a member-managed limited liability company and the other members of the limited liability company are the duties of loyalty and care under subdivisions (b) and (c)." Here, plaintiff does

not allege she is a member of the LLC. Instead, plaintiff alleges that as of April 2025, Angel Varela, Ralph Varela and Lisa Varela were one third owners of the ARA Properties, LLC (LLC). Then after Angel Varela's death in April 2025, his 33.3% interest was bequeathed to plaintiff and Anita Varela, with each receiving a 16.65 interest. Plaintiff alleges she is an Interest Holder in the LLC who has an "economic interest" which Article 1 of the Operating Agreement (OA) defines as a person who has a right to share in income but does not have any other rights as a member. (Complaint ¶¶22, 69, 70)

As plaintiff does not allege she was a member of the LLC, she does not have the right to assert violation of Section 17704.09.

Accordingly, the demurrer is SUSTAINED with leave to amend.

3rd Cause of Action: Involuntary Dissolution – Corp. Code §17707.03

In the Opposition, plaintiff states "Plaintiff will remove this cause of action for Dissolution." (Complaint at 4:21) Accordingly the demurrer to the 3rd cause of action is SUSTAINED without leave to amend.

Fraud Causes of Action: 4th - Intentional Misrepresentation; 5th - Negligent Misrepresentation and 6th – Fraud

The elements of fraud are: "(a) [a] misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or "scienter"); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (Lazar v. Superior Court (1996) 12 Cal.4th 631, 638; see also Engalla v. Permanente Medical Grow, Inc. (1997) 15 Cal.4th 951, 974.) The particularity requirement for fraud requires the pleading of facts showing how, when, where, to whom, and by what means the representations were made. (Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 73.) This is to provide the defendant with notice and to give the court enough information to assess whether there is a foundation for the charge of fraud. (Committee on Children's Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 216.)

Here, the fraud causes of action are alleged without distinction against four defendants, and without detail as to the specific fraudulent conduct. The allegations fall well short of the specificity required for pleading fraud. Accordingly, the demurrer is SUSTAINED as to the 4th-6th causes of action, with leave to amend.

7th – 16th Causes Of Action – Breach of Contract

The 7th -16th causes of action are all titled "breach of written contract" and assert a breach of the LLC's Operating Agreement (OA).

"To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach,

and (4) the resulting damage to the plaintiff.” (Richman v. Hartley (2014) 224 Cal.App.4th 1182, 1186.) “If the action is based on alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference.” (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 307.)

Here, rather than attach the OA and assert a single cause of action for breach of the OA, plaintiff has cited select portions of the OA in the complaint and then drafted a separate cause of action for ten different allegations as to how the OA was breached.

Notwithstanding, the court notes the similarity in each cause of action in that each repeats many of the same allegations.

In reviewing the portions of the OA cited in the complaint for each of the causes of action, the court does not find the ten breach of contract causes of action sufficiently pled. For example, the 7th cause of action points to a part of Article 1 which discusses how a capital account is to be managed but there is no citation to a requirement that a capital account be created for an interest holder who receives an interest by way of transfer from a member. There is also no allegation as to which of the defendants would have that obligation.

The 8th cause of action does not actually cite to provision in the OA which would give rise to a cause of action for failing to “recognize plaintiff’s economic interest.” The 9th and 10th causes of action do not allege distributions were made to which she would be entitled.

In the 11th cause of action, plaintiff asserts the four defendants failed to value her economic interests at fair market value and points to Article 1 which again discusses the capital account. However, plaintiff does not allege sufficient facts showing she had a capital account or that the defendants were obligated to create one for her.

In the 12th cause of action, plaintiff alleges the defendants made distributions to themselves that exceeded their ownership percentages. The complaint quotes section 6.4.2 of the OA which discusses the obligations of a member when the member receives a distribution in excess of his percentage but this does not discuss rights of an interest holder.

In the 13th cause of action, plaintiff alleges the defendants failed to properly value Angel Varela’s interest in the LLC. The 16th cause of action alleges the defendants refuse to value the plaintiff’s interest. The complaint cites to section 7.2.2 which discusses how a withdrawn member’s membership interest is valued but there is no citation to the portion of the OA authorizing an interest holder to contest such a valuation.

The 14th cause of action alleges the defendants are failing to take action to allow her to enjoy her rights. There is no citation to the portion of the OA which gives rise to this breach of contract claim. The 15th cause of action alleges the four defendants are not

recognizing her as an interest holder and quotes a portion of the OA relating to arbitration. There is no section of the OA cited which obligates the defendants to recognize the plaintiff.

In addition to failing to quote the portion of the OA giving rise to each cause of action (or attaching the actual OA), the allegation in each cause of action that plaintiff "has been harmed" by the breach is lacking detail as to the nature of the damages claimed. (See, Complaint ¶¶222, 236, 251, 269, 285, 299, 312, 328, 344, 358.)

Accordingly, the demurrer to the 7th -16th causes of action for breach of written contract are SUSTAINED, with leave to amend.

17th Cause of Action: Arbitration

Plaintiff states in the opposition: "Plaintiff will remove the cause of action for Arbitration." (Opp. at 7:28) Therefore, the demurrer is SUSTAINED as to the 17th cause of action without leave.

18th -20th Causes of Action (18 - Intentional Interference with Contract, 19 -Intentional Interference With Prospective Economic Advantage, 20 -Negligent Interference With Prospective Economic Advantage)

One of the requirements for pleading these three causes of action is "an economic relationship between the plaintiff and some third party." (Crown Imports, LLC v. Superior Court (2014) 223 Cal.App.4th 1395, 1404; see also, North American Chemical Co. v. Superior Court (1997) 59 Cal.App.4th 764, 786.) Here, the only agreement alleged in the complaint is the Operating Agreement for the LLC. There is no contract or economic relationship with a third party alleged. Accordingly, the demurrer is SUSTAINED as to the 18th – 20th causes of action, with leave to amend.

21st – 23rd Causes of Action: Specific Performance

In these three causes of action, plaintiff seeks orders that the defendants "determine the fair market value of plaintiff's interest" in the LLC, "determine the book value of plaintiff's interest" in the LLC and "make any distribution to plaintiff for her interest" in the LLC. (Complaint ¶¶476, 489 and 502)

"There are no separate causes of action for specific performance or injunctive relief, which are instead remedies. (See, e.g., Wong v. Jing (2010) 189 Cal.App.4th 1354, 1360, fn. 2, 117 Cal.Rptr.3d 747 [specific performance and injunctive relief are equitable remedies and not causes of action for injuries]; Marlin v. Aimco Venezia, LLC (2007) 154 Cal.App.4th 154, 162, 64 Cal.Rptr.3d 488 [injunctive relief].)" (Green Valley Landowners Assn. v. City of Vallejo (2015) 241 Cal. App. 4th 425, 433, Fn. 8)

Accordingly, the demurrer to the 21st -23rd Causes of Action is SUSTAINED, with leave to amend.

24th Cause of Action: Violation of Corp. Code §309

Defendants argue Corp. Code §309 applies to corporations and not LLC's. Plaintiff does not dispute this but instead argues she will be able to amend. Accordingly, the demurrer to the 24th cause of action is SUSTAINED, with leave to amend.

25th Cause of Action: Accounting

"A cause of action for an accounting requires a showing that a relationship exists between the plaintiff and defendant that requires an accounting, and that some balance is due the plaintiff that can only be ascertained by an accounting. An action for accounting is not available where the plaintiff alleges the right to recover a sum certain or a sum that can be made certain by calculation. (St. James Church of Christ Holiness v. Superior Court (1955) 135 Cal.App.2d 352, 359.) A plaintiff need not state facts that are peculiarly within the knowledge of the opposing party. (Brea v. McGlashan, supra, 3 Cal.App.2d at p. 460)" (Teselle v. McLaughlin (2009) 173 Cal.App.4th 156, 179.)

Defendant argues plaintiff has failed to sufficiently allege a relationship requiring them to provide plaintiff an accounting. In the opposition, plaintiff argues Section 17704.10 permits non-members to seek an accounting. That is not what section 17704.10 says.

Plaintiff also argues that "in member-managed LLCs, members owe a statutory duty of loyalty to the LLC, which includes a duty 'to account to the limited liability company' and hold as trustee any property, profit, or benefit derived in the conduct of LLC activities. (Corp. Code §17704.09.) (Opp. at 10:11-13) As discussed above, section 17704.09 relates to members.

In the opposition, plaintiff argues "California law recognizes multiple bases for an interest holder to bring suit against an LLC, such as those contained in the Complaint. Transferees and interest holders are explicitly granted the right to receive information reasonably related to their interest. (Corp. Code §17704.10)" (Opp. at 3:21-24)

Regarding a transferee's right to inspect the books and records of the LLC, Section 17704.10, subd. (b) provides:

(b) Each member, manager, and transferee has the right, upon reasonable request, for purposes reasonably related to the interest of that person as a member, manager, or transferee, to each of the following:

"(1) To inspect and copy during normal business hours any of the records required to be maintained pursuant to Section 17701.13.

"(2) To obtain in writing from the limited liability company, promptly after becoming available, a copy of the limited liability company's federal, state, and local income tax returns for each year."

		Among the records required to be maintained under Section 17701.13, subd. (d) are: “(4) Copies of the limited liability company's federal, state, and local income tax or information returns and reports, if any, for the six most recent fiscal years. . . . “(6) Copies of the financial statement of the limited liability company, if any, for the six most recent fiscal years. “(7) The books and records of the limited liability company as they relate to the internal affairs of the limited liability company for at least the current and past four fiscal years.” Regarding a transferee’s rights to receive distributions, Section 17705.02, subd. (b) provides: “(b) A transferee has the right to receive, in accordance with the transfer, distributions to which the transferor would otherwise be entitled; provided, however, that the pledge or granting of a security interest, lien, or other encumbrance in or against any or all of the transferable interest of a transferor shall not cause the transferor to cease to be a member or grant to the transferee or to anyone else the power to exercise any rights or powers of a member, including, without limitation, the right to receive distributions to which the member is entitled.” However, plaintiff does not specifically allege violations of Section 17704.10 or 17705.02; indeed, these code sections are not mentioned in the complaint. Accordingly, the demurrer to the 25 causes of action is SUSTAINED, with leave to amend. Defendants shall give notice.
2	Ignatius vs. Shune	O/C.
3	Smith vs. Kia America, Inc.	Defendant Kia America, Inc.’s (“Defendant”) Motion for Terminating Sanctions (“Motion”) against plaintiff Wayne D. Smith (“Plaintiff”) is GRANTED. After Plaintiff failed to appear at multiple properly noticed deposition dates, the court ordered Plaintiff to appear for deposition no later than 6/04/26 and imposed a \$2,000 monetary sanction. (ROA 136.) Despite Defendant’s best efforts and multiple additional attempts to depose Plaintiff, Plaintiff failed and/or refused to appear for the court ordered deposition. Defendant requests terminating sanctions, or in

the alternative, issue and evidentiary sanctions, as well as additional monetary sanctions against Plaintiff and his counsel of record.

Although discovery sanctions are typically meted out sparingly or in an incremental approach (*Dep't of Forestry & Fire Prot. v. Howell* (2017) 18 Cal. App. 5th 154, 191-92), the court has considered the totality of the circumstances in this instance and finds the actions of Plaintiff appear to be willful, to the detriment of Defendant, and that multiple informal attempts to resolve the issues were not successful due to Plaintiff's failure and/or refusal to participate. (*Los Defensores, Inc. v. Gomez* (2014) 223 Cal. App. 4th 377, 390.)

Moreover, prior monetary sanctions did not dissuade Plaintiff from additional discovery abuses. And issue and evidentiary sections are appropriate where the discovery violated goes to a particular issue in the case. But here, Plaintiff's deposition is an essential discovery device that goes to all issues. Thus, the court finds the request for terminating sanctions to be appropriate here.

Plaintiff's counsel requests a brief continuance of this motion for compliance, suggesting that the difficulty in obtaining Plaintiff's deposition has been merely technical.

But at the agreed upon deposition set for July 22--well after the compliance date set in Judge De La Cruz's order--Plaintiff still did not appear. Counsel explains "[o]ur records reflect that counsel attempted to call Plaintiff [and] left a voicemail" The attempts to contact Plaintiff at the deposition were mentioned in the nonappearance transcript on July 22, where defense counsel noted: "Off the record plaintiff's counsel advised she had attempted to contact plaintiff on at least two different numbers but was unable to reach him." RT 4:22-25.

Although older persons might have difficulty with Zoom, telephones have been around for 150 years and despite technological changes in dialing numbers, they are simple to operate. That Plaintiff did not call his counsel to report a difficulty connecting to Zoom on July 22 or even answer his counsel's calls suggests something more sinister is afoot. Indeed, Plaintiff's counsel declares:

"Despite repeated communications, warnings, scheduling efforts, and the proposed technological assistance, Plaintiff has persistently been unable to appear for and complete his deposition. [¶] "The repeated inability to communicate effectively with Plaintiff, coordinate his participation, and ensure compliance with his discovery obligations has caused an irreparable breakdown in the attorney-client relationship. [¶] Because of that irreparable breakdown in the attorney-client relationship, Plaintiff's counsel anticipates filing a motion to be relieved as counsel."

Wong Decl. at ¶¶16, 17, 18. In other words, Plaintiff's counsel has given up trying to get his client to appear for deposition. The Court also gives up and will not continue the motion for compliance.

		Action is DISMISSED with prejudice. The court also issues additional monetary sanctions against Plaintiff in the sum of \$1,500 to be paid within 14 days of written notice of the ruling. Defendant is ordered to give notice of the ruling and submit a proposed judgment with proof of service within 15 days..
4	Alofs vs. Volkswagen A.G.	Defendant Volkswagen A.G.'s ("Defendant") Motion to Quash Service of Summons ("Motion") is GRANTED. Defendant argues it is a foreign corporation with no contacts within California or the United States. California courts may exercise jurisdiction over nonresidents "on any basis not inconsistent with the Constitution of this state or of the United States." (Code Civ. Proc., § 410.10.) The statute "manifests an intent to exercise the broadest possible jurisdiction, limited only by constitutional considerations." [Citation.] (<i>DVI, Inc. v. Superior Ct.</i> (2002) 104 Cal. App. 4th 1080, 1089 ("<i>DVI</i>").) "The federal Constitution permits a state to exercise jurisdiction over a nonresident defendant if the defendant has sufficient "minimum contacts" with the forum such that "maintenance of the suit does not offend 'traditional notions of fair play and substantial justice.'" [Citations.] [Citation.] "The 'substantial connection,' [citations] between the defendant and the forum State necessary for a finding of minimum contacts must come about by an action of the defendant purposefully directed toward the forum State. [Citations.]" [Citation.]" (<i>Id.</i>, at 1089-90.) "Personal jurisdiction may be either general or specific. [Citation.] A nonresident defendant is subject to the forum's general jurisdiction where the defendant's contacts are " 'substantial ... continuous and systematic.' " [Citations.] In that situation, the cause of action need not be related to the defendant's contacts. [Citations.] "Such a defendant's contacts with the forum are so wide-ranging that they take the place of physical presence in the forum as a basis for jurisdiction." [Citation.]" (<i>DVI, supra</i>, 104 Cal. App. 4th at 1090.) "If the nonresident defendant does not have substantial and systematic contacts with the forum state, the defendant may be subject to specific jurisdiction if (1) " 'the defendant has purposefully availed [itself] of forum benefits' " with respect to the matter in controversy, (2) " 'the "controversy is related to or 'arises out of' [the] defendant's contacts with the forum," ' " and (3) the exercise of jurisdiction would comport with fair play and substantial justice." (<i>Ibid.</i>; <i>Pavlovich v. Superior Ct.</i> (2002) 29 Cal. 4th 262, 269.) The court must perform analysis of whether general jurisdiction and/or specific jurisdiction applies, and in the instance of personal

jurisdiction, if assertion of personal jurisdiction would comport with the interests of fair play and substantial justice. (*L.W. v. Audi AG*, 108 Cal. App. 5th 95, 117-18 ("*Audi*").) In the present matter, Plaintiff made no arguments regarding general jurisdiction, which leaves only personal jurisdiction and the related issues of fair play and substantial justice in contest.

The *Audi* case is informative and controlling and involves the same vehicle manufacturing and sales/warranty structure that are present in this case.

"[S]pecific jurisdiction "covers defendants less intimately connected with a State, but only as to a narrower class of claims. The contacts needed for this kind of jurisdiction often go by the name 'purposeful availment.' [Citation.] The defendant ... must take 'some act by which [it] purposefully avails itself of the privilege of conducting activities within the forum State.' " " (*L.W. v. Audi AG*, 108 Cal. App. 5th 95, 107 ("*Audi*").) "When determining whether specific jurisdiction exists, courts consider the ' "relationship among the defendant, the forum, and the litigation." ' [Citation.] A court may exercise specific jurisdiction over a nonresident defendant only if: (1) 'the defendant has purposefully availed himself or herself of forum benefits' [citation]; (2) 'the "controversy is related to or 'arises out of' [the] defendant's contacts with the forum" ' [citation]; and (3) ' "the assertion of personal jurisdiction would comport with 'fair play and substantial justice' ' " " (*Ibid.*) "But we must "exercise ' "[g]reat care and reserve ... when extending our notions of personal jurisdiction into the international field" " " and " 'we apply jurisdictional principles with an abundance of caution where the defendant is a foreign corporation.' " [Citation.] In doing so, we are guided by the principal that the doctrine of specific jurisdiction is intended primarily to safeguard the due process rights of the defendant being haled into court and not the interests of the plaintiff in obtaining a convenient forum." (*Ibid.*)

"When a corporation 'purposefully avails itself of the privilege of conducting activities within the forum State,' [citation], it has clear notice that it is subject to suit there, and can act to alleviate the risk of burdensome litigation by procuring insurance, passing the expected costs on to customers, or, if the risks are too great, severing its connection with the State. Hence, *if the sale of a product of a manufacturer or distributor such as Audi or Volkswagen is not simply an isolated occurrence, but arises from the efforts of the manufacturer or distributor to serve directly or indirectly, the market for its product in other States, it is not unreasonable to subject it to suit in one of those States if its allegedly defective merchandise has there been the source of injury to its owner or to others.* The forum State does not exceed its powers under the Due Process Clause if it asserts personal jurisdiction over a corporation that delivers its products into the *stream of commerce* with the expectation that they will be purchased by consumers in the forum State." (*Audi, supra*, 108 Cal. App. 5th at 108-09, citing to *World-Wide Volkswagen Corp. v. Woodson* (1980) 444 U.S. 286 (*World-Wide Volkswagen*).)

In *Audi*, the Court of Appeal held "the record here contains competent evidence establishing the existence of specific jurisdiction over Audi under a stream-of-commerce theory. This is because the record shows that Audi, through its distributor VWGoA, intentionally placed its vehicles into the regular flow of commerce to the United States, including to California. In reaching this conclusion, we are mindful that, as discussed, the United States Supreme Court has not agreed on the precise requirements necessary to establish specific jurisdiction under a stream-of-commerce theory beyond foreseeability that a product may enter the forum state. However, under any of the analyses articulated by the various lead opinions, there is enough in this particular case for Audi to be properly summoned." (*Audi, supra*, 108 Cal. App. 5th at 114.)

"Under the circumstances presented, the purposeful availment and relatedness requirements of specific jurisdiction were satisfied. Given the evidence demonstrating that Audi has continuously and deliberately exploited California's automobile market for its economic benefit through VWGoA, Audi must reasonably anticipate being haled into California courts to defend the very type of action this case presents: a products liability action seeking to recover damages for injuries allegedly caused by a defective Audi vehicle in California." (*Audi, supra*, 108 Cal. App. 5th at 116.) "To be sure, this is not a case where Audi is being haled into a California court as the result of "random," "fortuitous," or "attenuated" contacts, or of the unilateral activity of a third party. [Citation.] Rather, Audi's conduct and connection with California are such that it had clear notice it would be subject to suit here." (*Id.*, at 117.)

As the court in *Audi* found sufficient evidence of purposeful availment and relatedness requirements of specific jurisdiction, this court also finds sufficient evidence of availment supporting personal jurisdiction over Defendant in this matter. This leaves the issue of fair play and substantial justice and relatedness.

While the court in *Audi* found it fair and reasonable that Audi be haled into court in California for a lawsuit involving design defect which resulted in a child being injured when the car pinned him to a wall, there was no Song-Beverly warranty issues or marketing/sales issues that are present in that case.

In the matter before this court, causes of action one through five are Song-Beverly or related claims based upon warranty issues. Defendant does not issue warranties on vehicles that are sold in the United States, nor does it provide replacement parts or service vehicles sold in the United States. (Piep Decl. ¶¶ 5-6, 13.) Nor does it market, advertise, or sell products within the United States (causes of action numbers six through eight). (Piep Decl. ¶¶ 5-10, 13.) Therefore there is no relationship between Defendant and the issues of this litigation. (*Audi* 108 Cal. App. 5th at 107.) As the controversy is not related to or does not arise out of Defendant's contacts with California, the assertion of personal jurisdiction would not comport with fair play and substantial justice.

		Under the specific facts of this case, it would not be fair and reasonable to expect Defendant to be haled into California court for the issues alleged. The Motion is GRANTED on this basis. Although neither party addressed this in their pleadings, even if California were to be able to assert personal jurisdiction over Defendant under the facts of this specific case, the summons itself appears to have not been served on Defendant. The proof of service indicates Defendant was served on 'CSC Lawyers Incorporating Service - Alex Jenkins - Authorized Agent - Person Authorized to Accept Service of Process' at 2710 Gateway Oaks Dr Suite 150N, Sacramento, CA 95833 ("CSC"). (ROA 12.) The declaration in support of the Motion indicates Defendant does not have a registered agent or other personnel authorized to accept service of process in California. (Piep Decl. ¶ 12.) Plaintiff has not shown service on CSC was sufficient to effect service on Defendant. The Motion is also GRANTED on this basis. The court hereby orders service of summons on Defendant quashed. Defendant to give notice.
5	Au v. Elliot	Cont. to 9/26.
6	Lukash v. Avid Bioservices, Inc.	O/C
7	Dahleh v. NPI Debt Fund II, LP	O/C
8	Nichols v. Mojodojo Cali, LLC	The motion of plaintiff Summer Nichols (Plaintiff) for leave to file a first amended complaint is GRANTED. (Code Civ. Proc., § 473(a)(1).) Courts are bound to apply a policy of great liberality in permitting amendments to the complaint "at any stage of the proceedings, up to and including trial," absent prejudice to the adverse party. (<i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761.) The Court finds Plaintiff has shown the interests of justice support granting the motion. There appears to be no prejudice that would result from the amendment as trial is not set to commence until August 2027. Moreover, defendant Mojodojo Cali, LLC d/b/a Sky Zone Mission Viejo (Defendant) makes no argument that it would be prejudiced by the amendment. Defendant argues the amendment is futile because the proposed amended complaint does not supply facts sufficient to state gross negligence. This argument is more suitably addressed by demurrer or other appropriate proceedings. (<i>See Kittredge Sports Co. v. Sup.Ct. (Marker, U.S.A.)</i> (1989) 213 Cal.App.3d 1045, 1048 ["[T]he preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings."].) Accordingly, the motion is GRANTED.

		The First Amended Complaint is to be separately filed within 7 days of the date of this order. Counsel for Plaintiff is ordered to give notice of this ruling.
9	Trillo v. American Honda Motor Co.	Cont. to 10/5
10	Lozano v. Absolute Law Group	Before the Court is a motion to compel arbitration and stay proceedings filed by defendants Absolute Law Group, PC and Michael Banks (Defendants) against plaintiff Nanci Lozano. For the reasons set forth below, the motion is DENIED. Defendants met their burden to show the existence of a written arbitration agreement that covers Plaintiff's claims. (Code of Civ. Proc. § 1281.2; see also <i>Little v. Pullman</i> (2013) 219 Cal.App.4th 558, 565; Declaration of Freddie V. Vega, Ex. A.) However, Plaintiff met her burden the arbitration agreement is unenforceable under the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021, 9 U.S.C. § 401 et. seq. (EFAA). The Federal Arbitration Act (FAA) governs this dispute because the arbitration agreement expressly states it applies. (<i>Victrola 89, LLC v. Jaman Properties 8 LLC</i> (2020) 46 Cal.App.5th 337, 355.; Vega Decl., Ex. A at p. 3.) The FAA incorporates the EFAA. (9 U.S.C. § 2.) Plaintiff alleges a viable claim for hostile work environment sexual harassment under the California Fair Employment and Housing Act, Gov. Code § 12940 et. seq. (<i>Fisher v. San Pedro Peninsula Hosp.</i> (1989) 214 Cal.App.3d 590, 607-608 [elements of sexual harassment] Compl. ¶¶ 32-40, 75-89.) Because at least one claim fits within the scope of the EFAA, the arbitration agreement is unenforceable as to all claims asserted in the lawsuit. (<i>Liu v. Miniso Depot CA, Inc.</i> (2024) 105 Cal.App.5th 791, 800; <i>Doe v. Second Street Corp.</i> (2024) 105 Cal.App.5th 552, 577.) The motion is therefore DENIED. Counsel for Plaintiff shall give notice of this ruling.
11	Lin v. Zhang	Before the Court is a motion by plaintiff Gary Lin for an award of attorney's fees in the amount of \$1,103,418 against defendants Ark Electronics USA, Inc. and Wen Xia Zhang (collectively, "Defendants"). The motion is GRANTED in part, and DENIED in part, as set forth herein. A party seeking an award of fees has the burden of establishing entitlement to an award, and of documenting the appropriate hours spent, and the hourly rates. (569 E. County Blvd. LLC v Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 432; Lunada Biomedical v Nunez (2014) 230 Cal.App.4th 459, 486.) At trial, plaintiff prevailed on the cause of action for violation of Pen. Code § 496 which provides for recovery of reasonable attorney's

fees. The 3/25/26 Judgment states, in part: "Zhang and Ark are jointly and severally liable to Lin for treble damages under California Penal Code Section 496 in the amount of \$2,700,054, along with Lin's cost of suit and reasonable attorneys' fees, in an amount to be determined by the Court."

In support of the motion for attorney's fees, plaintiff submits the declarations of Phillip Kaplan and Ellsworth Vines which are accompanied by detailed billing statements for attorney's fees incurred in this action. The time entries are billed to the tenth of an hour and appear recorded on a per task basis. Kaplan and Vines also attest to the reasonableness of the rates and billing. Defendants do not contest the reasonableness of the rates charged. The court finds plaintiff has sufficiently established reasonableness of the rates and a basis for the fees in addition to sufficiently documenting the hours billed.

In challenging an attorney fee request, the burden falls upon the challenging party to point to specific items challenged, with arguments and citation to evidence. General claims that fees are excessive insufficient. (Premier Medical Management Systems, Inc. v. California Insurance Guarantee Association (2008) 163 Cal.App.4th 550, 564.) A party cannot litigate tenaciously and then be heard to complain about the time incurred. (Peak-Las Positas Partners v. Bollag (2009) 172 Cal.App.4th 101, 114.)

Defendants advance three arguments as to how the plaintiff's fee request should be reduced. Each of the arguments are by reference to specific exhibits attached to the declaration of Kristopher Wood, and are therefore addressed by reference to the same exhibits.

Defendants' Exhibits 1 & 2 – Employment Specific Time Entries

The employment claim was added in the 5th amended complaint in February 2025. There are several entries in the billing related to seeking leave to amend, opposing the demurrer and for taking select depositions related to the amended complaint allegations. Defendants attach as Exhibits 1 and 2 two charts which identify specific entries which appear to be for work on the motion for leave to amend and work opposing the defendant's demurrer. Based on the descriptions, this billing can be fairly said to have been solely related to adding the employment cause of action to the complaint. In the Reply, plaintiff does not respond to this argument, thereby conceding the point.

The total amount of the specific entries identified in Exhibits 1 and 2 is \$57,803. The Court finds that these entries were not related to the Penal Code §496 cause of action and therefore the motion is DENIED as to this amount.

Defendants' Exhibit 4 – Clerical Work

Defendants argue there should be a 10% reduction of the overall bill as excessive because many of the entries were for "clerical" work.

Wood attaches to his declaration at Exh. 4 a spreadsheet listing "examples of administrative time entries."

Exhibit 4 lists 26 entries by multiple persons totaling \$7,219.50. The 26 entries are not all clerical. For example, Exh. 4 identifies a 1.2 hr. entry by Feng on 10/28/24 where he billed for "Strategize re: budget and next steps." Further, there is no basis seeking a reduction for excessive or clerical time based on counsel's personal estimates based on a small sample of entries. "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Premier Med. Mgmt. Sys., Inc. v. California Ins. Guarantee Assn. (2008) 163 Cal. App. 4th 550, 564)

Notwithstanding, the Court has reviewed the 26 entries identified by Defendants and finds that the 11 entries on 8/26/24, 9/5/24, 9/17/24, 9/18/24, 10/23/24, 10/28/24, 12/2/24, 1/6/25, 1/7/25, 2/11/25, 7/28/25 and 9/5/25 were for clerical tasks and not recoverable as attorney's fees. These 11 entries total \$870. The motion is therefore DENIED as to \$870.

Exhibit 3 – Request for "across the board" reduction of 40%

Defendants attach as Exhibit 3 a list of time entries totaling \$457,564.50. Defendants argue that because the "trial was nearly evenly split" between employment and stock theft claims, there should be an across the board reduction of 40%, which would result in a \$183,025.80 reduction in plaintiff's fee request. The Court disagrees.

When liability issues are so intertwined, apportionment is not appropriate. The Court explained in *Akins v. Enterprise Rent-A-Car Co.* (2000) 79 Cal.App.4th 1127, 1134: "When a cause of action for which attorney fees are provided by statute is joined with other causes of action for which attorney fees are not permitted, the prevailing party may recover only on the statutory cause of action. However, the joinder of causes of action should not dilute the right to attorney fees. Such fees need not be apportioned when incurred for representation of an issue common to both a cause of action for which fees are permitted and one for which they are not. All expenses incurred on the common issues qualify for an award. When the liability issues are so interrelated that it would have been impossible to separate them into claims for which attorney fees are properly awarded and claims for which they are not, then allocation is not required."

This litigation spanned five years and culminated in a lengthy court trial. While Defendants argue in their opposition that the trial was evenly split between employment and stock claims, Exhibit 4 does not establish such. In fact, no evidence was submitted to support the conclusion the time at trial was evenly split. "In law and motion practice, factual evidence is supplied to the court by way of

		declarations.” (Calcor Space Facility, Inc. v. Superior Ct. (1997) 53 Cal.App.4th 216, 224) Notwithstanding the lack of evidence, the Court is of the opinion the employment and stock theft claims were inextricably intertwined. As the Court stated in its Statement of Decision, “This case presents a classic tale of “buyer’s remorse.” Having welcomed Lin as an officer, director, and one of the Ark’s three founders, Defendants later came to regret their decision to include him in the business and attempted to undo their decision through a rewrite of history.” (ROA 454) Throughout the trial, the theory of the case presented by plaintiff was that there was a conspiracy to fire him in order to get his stock. The same witnesses testified as to both the theft and employment claims. Accordingly, the Court declines to make an across the board reduction in plaintiff’s attorney’s fees. Based on the foregoing, plaintiff’s motion for attorney’s fees is GRANTED, in part, and plaintiff is awarded \$1,044,745 (\$1,103,418 less \$57,803 and \$870) in attorney’s fees against Ark Electronics USA, Inc. and Wen Xia Zhang, jointly and severally. Plaintiff to submit a proposed amended judgment. Plaintiff shall give notice.
12	Spread Your Wings, LLC v. Tran	Before the Court is a demurrer filed by defendants Kristy Rodriguez (Kristy), Monica Rodriguez (Monica) and Diana Hsueh (Hsueh), Yvonne Padron (Padron) and Ascend Services, Inc. (Ascend)(collectively, Defendants) to the Fourth Amended Complaint (4AC) filed by plaintiffs Spread Your Wings, LLC and Andrew Dumbuya (Plaintiffs). For the reasons set forth below, as to Ascend, the demurrer is OVERRULED as to the 5th and 14th causes of action and SUSTAINED as to the 9th-13th causes of action without leave to amend. As to Kristy, Monica and Hsueh, the demurrer is SUSTAINED without leave to amend. As to Pardon, the demurrer is SUSTAINED with 20 days’ leave to amend. Plaintiffs request for judicial notice is GRANTED. (Evid. Code § 452, subd. (d).) <u>Ascend</u>: The California Uniform Trade Secrets Act, Civil Code section 3426 et. seq. (CUTSA) preempts common law claims for misappropriation of trade secrets. (<i>K.C. Multimedia, Inc. v. Bank of America Tech. & Operations, Inc.</i> (2009) 171 Cal.App.4th 939, 954.) Common law claims and statutory unfair competition claims that are “based on the same nucleus of facts as the misappropriation of trade secrets claim for relief” are also preempted by CUTSA. (<i>Id.</i> at 958, 961-962.) CUTSA does not preempt other California statutes regulating trade secrets; nor does it affect “contractual remedies, whether or not based upon misappropriation of a trade secret” or “other civil remedies that are not based upon misappropriation of a trade secret. (Civ. Code § 3426.7; <i>Angelica Textile Services, Inc. v. Park</i> (2013) 220 Cal.App.4th 495, 507.) The Court finds that the 9th-13th causes of action are based on the same nucleus of facts as the 4th cause of action for misappropriation of trade secrets claim

		under CUTSA, but the 5th and 14th causes of action are not. (See 4AC ¶¶ 78, 69-76, 78-81, 86-113, 116.) The Court also rejects Defendants' argument the 5th cause of action for violation of Penal Code section 496 does not apply to receipt of stolen trade secrets. (<i>People v. Gopal</i> (1985) 171 Cal.App.3d 524, 541 ["Anything that can be the subject of theft can also be property under section 496" including a trade secret]'; see also Civ. Code § 3426.1, subd. (a) [acquisition of a trade secret by "[i]mproper means includes theft, bribery, misrepresentation . . . through electronic or other means"]; 4AC ¶¶ 1, 78.) The demurrer is thus SUSTAINED as to the 9th-13th causes of action without leave to amend and OVERRULED as to the 5th and 14th causes of action. <u>Kristy, Monica and Hsueh</u>: Plaintiffs failed to cure the defect in the prior pleading. The 4AC does not add any new material and/or specific facts against Kristy, Monica and Hsueh. In the 4AC, Plaintiffs now allege they "intentionally and/or negligently interfered with SYW's existing contractual relations and SYW's prospective economic relations" but without identifying any specific conduct by Monica and Hsueh. The additional facts alleged against Kristy (4AC ¶ 40) are insufficient to support the interference claims against her. Plaintiffs fail to allege a valid contract with a third party with which Kristy interfered or an existing relationship that is likely to produce economic benefits in the future. (<i>Quelamine Co. v. Stewart Title Guaranty Co.</i> (1998) 19 Cal.4th 26, 55; <i>Korea Supply Co. v. Lockheed Martin Corp.</i> (2003) 29 Cal.4th 1134, 1164.) An allegation about interference with unnamed "clients within SYW's pipeline, about 10-20 clients starting services" is insufficient. (<i>Korea Supply Co. v. Lockheed Martin Corp.</i>, <i>supra</i>, 29 Cal.4th at 1164 [the tort does not protect the expectation "that a potentially beneficial relationship will arise"].) Furthermore, as discussed above, CUTSA preempts the 9th through 13th causes of action. The demurrer is thus SUSTAINED without leave to amend as to these defendants. <u>Padron</u>: The only facts alleged against Padron in the 4AC is that she was "retained as a consultant" by Tran, Garcia and Ascend to "convert, plagiarize, duplicate, repackage" SYW's trade secrets and confidential information. Notably, misappropriation requires acquisition or use of a trade secret by a person knows or has reason to know the trade secret was acquired by improper means, and receipt of stolen property requires knowledge that the property was stolen. (Civ. Code § 3426.1, subd. (b), Pen. Code § 496.) There are no facts showing Padron's knowledge or constructive knowledge that the information she purportedly converted was SYW's trade secrets and that they were stolen and/or acquired by improper means. Furthermore, as discussed above, CUTSA preempts the 9th through 13th causes of action. The demurrer is thus SUSTAINED with 20 days' leave to amend as to Padron. Counsel for Defendants shall give notice of this ruling.
13	Bui v. Elliot	Cont. to 9/26

14	Bui v. Elliot	Cont. to 9/26																				
15	Trejo v. Trejo	O/C																				
16	Twining vs. Tarvin	Defendant Gina Clayton Tarvin’s (“Defendant”) Motion for Attorney Fees and Costs (“Motion”) is GRANTED. Defendant was the prevailing party on an anti-SLAPP motion filed against plaintiff Edward "Butch" Twining’s (“Plaintiff”) Complaint, and judgment in favor of Defendant was entered thereafter. (ROA 92, 93.) The prevailing party on an anti-SLAPP motion is entitled to recover reasonable attorney fees incurred on the motion. (Civ. Proc. Code § 425.16; <i>Ketchum v. Moses</i> (2001) 24 Cal. 4th 1122, 1131.) Defendant is only permitted to recover fees and costs incurred in bringing the anti-SLAPP motion and the present motion for attorney fees, and not all of the fees incurred throughout an entire lawsuit. (<i>Lafayette Morehouse, Inc. v. Chron. Publ’g Co.</i> (1995) 39 Cal. App. 4th 1379, 1383.) Multipliers are permitted in attorney fee awards on anti-SLAPP motions. (<i>Ketchum, supra</i>, 24 Cal. 4th at 1136.) There are multiple factors the court may consider when determining whether a multiple should apply. (<i>Serrano v. Priest</i> (1977) 20 Cal. 3d 25, 49.) The prevailing party in an action is also permitted to recover certain costs. (Civ. Proc. Code §§ 1032 and 1033.5.) Defendant requests a total attorney fee award of \$139,310.50, which includes the fees incurred pre-judgment multiplied by 1.45x; a multiplier on the post-judgment fees was not sought. The court has reviewed the hours billed and found some fees to be improper and/or excessive. Specifically, the court strikes the fees billed related to Plaintiff’s motion for discovery as those fees were not incurred on the anti-SLAPP motion. The court will permit the fees billed related to Plaintiff’s ex parte application to continue the hearing on the anti-SLAPP motion as those are related. The court also strikes certain billing related to meetings between co-defense counsel. The court finds that a 1.45x multiplier on the pre-judgment fees is warranted as this matter involved difficult freedom of speech issues wherein Plaintiff sought \$25 million from Defendant, the case was taken on a contingency fee basis with no apparent external funding, and the case was efficiently ended at an early stage. The total attorney fee award in favor of Defendant and against Plaintiff is \$118,102, which is broken down as: <table><tr><th>Attorney / Staff:</th><th>Rate:</th><th>Reas. Hrs.:</th><th>Total Reas. Fees:</th><th>Multiplier (1.45x)</th></tr><tr><td>Haden</td><td>\$250</td><td>2.2</td><td>\$550</td><td>\$797.50</td></tr><tr><td>D’Arcy</td><td>\$475</td><td>4.2</td><td>\$1,995</td><td>\$2,892.75</td></tr><tr><td>Resnick (anti-SLAPP)</td><td>\$600</td><td>4.7</td><td>\$2,820</td><td>\$4,089</td></tr></table>	Attorney / Staff:	Rate:	Reas. Hrs.:	Total Reas. Fees:	Multiplier (1.45x)	Haden	\$250	2.2	\$550	\$797.50	D’Arcy	\$475	4.2	\$1,995	\$2,892.75	Resnick (anti-SLAPP)	\$600	4.7	\$2,820	\$4,089
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17	Stassi v. Indelicato	Before the Court is a motion for summary adjudication filed by defendants Nicholas G. Indelicato (Indelicato) and Restaurant Specialists Construction, Inc. (RS Construction)(collectively, Defendants) to the first amended complaint (FAC) filed by plaintiff Timothy Stassi (Plaintiff). For the reasons set forth below, the motion is GRANTED as to the 1st cause of action as to both Indelicato and RS Construction and DENIED as to Indelicato’s motion on the 3rd through 8th causes of action. <u>1st cause of action (breach of oral contract):</u> The object of a contract must be lawful, i.e., it must not be in conflict with law (express or implied) or public policy. (Civ. Code §§ 1550, 1667; 1 Witkin, Summary of California Law, Contracts (May 2026 Update) § 421.) If the contract has a single object, and that object is unlawful (whether in whole or in part), the entire contract is void. (Civ. Code § 1598; <i>Stockton Morris Plan Co. v. California Tractor & Equipment Corp.</i> (1952) 112 Cal.App.2d 684, 689.) Whether a contract is illegal or contrary to public policy is a question of law to be determined by the court from the circumstances of each particular case. (<i>Jackson v. Rogers & Wells</i> (1989) 210 Cal.App.3d 336, 349-350.) Defendants have shown the alleged agreement is void as illegal. (FAC ¶¶ 34-36.) Plaintiff readily admits the illegality of the contract. (Stassi Decl. ¶ 9.) While Plaintiff may be entitled to wages and overtime pursuant to the Labor Code, he fails to cite to any authority entitling him to damages on a contract theory. The motion is thus GRANTED as to this cause of action for both defendants. <u>3rd to 6th causes of action (wage and hour claims):</u> Plaintiff alleges in the FAC that Indelicato was the alter ego of RS Construction and/or a joint employer with RS Construction who “was directly in																																			

charge of Plaintiff's schedule" and "controlled the hours Plaintiff worked and the conditions of his employment." (FAC ¶¶ 11, 12, 30, 31.)

Indelicato produced evidence he is not the alter ego of RS Construction. (*Mesler v. Bragg Mgmt. Co.*, 39 Cal. 3d 290, 300 [elements of alter ego]; Defendants' Separate Statement of Undisputed Material Facts ("DSS") 1-5, 11-13, 15, 16, 18-21.) However, Indelicato failed to address Plaintiff's allegation that Indelicato was a joint employer. A joint employer relationship exists when one entity hires and pays a worker, and another entity supervises the work. (*Martinez v. Combs* (2010) 49 Cal.4th 35, 76.) The term "employ" under the definition of the Industrial Welfare Commission means "(a) to exercise control over the wages, hours or working conditions, or (b) to suffer or permit to work, or (c) to engage, thereby creating a common law employment relationship." (*Id.* at 64.)

Here, while Indelicato produced evidence he was not the Plaintiff's employer of record (DSS 4, 5, 14-21), Indelicato failed to produce any evidence that he did not exercise control over Plaintiff's wages, hours or working conditions. Indelicato's failure to address joint employer liability is fatal to the motion. (Code of Civ. Proc. § 437c, subd. (b)(1)[a summary judgment motion must show that the "material facts" are undisputed]; *Nieto v. Blue Shield of Calif. Life & Health Ins. Co.* (2010) 181 Cal.App.4th 60, 74 ["the pleadings determine the scope of relevant issues on a summary judgment motion"].) Indelicato failed to meet his moving burden. But even assuming arguendo that he did, Plaintiff produced sufficient evidence showing triable issues of fact. (Stassi Decl. ¶¶ 3-13.) Indelicato's motion is therefore DENIED as to these causes of action.

7th cause of action (whistleblower retaliation): Indelicato argues an individual cannot be held liable under Section 1102.5. However, all of the cases upon which Indelicato rely support the position that a nonemployer *corporate agent* (a person acting on behalf of the employer) cannot be held personally liable. (See e.g., *Tillery v. Lollis* (E.D. Cal. 2015) 2015 WL 4873111, at *9; *United States v. CardioDx, Inc.* (N.D. Cal. 2019) 2019 WL 2163002, at *13; *Mewawalla v. Middleman* (N.D. Cal. 2022) 601 F.Supp.3d 574, 608; *Friedman v. Jenkins* (N.D. Cal. Mar. 19, 2024) 2024 WL 1182878, at *5 and *Lapchak v. Paradigm Biopharmaceuticals (USA), Inc.* (S.D. Cal. 2025) 2025 WL 437904, at *5-8.) Indelicato fails to cite to any authority that an individual alleged to be a joint employer cannot be held liable under Section 1102.5. As discussed above, Indelicato failed to meet his moving burden that he did not jointly employ Plaintiff. Indelicato's motion is therefore DENIED as to this cause of action.

8th cause of action (unfair competition): This claim is predicated on the alleged wage and hour violations (FAC ¶ 91), and survives for the same reasons set forth above. Indelicato's motion is therefore DENIED as to this cause of action.

Counsel for Defendants shall give notice of this ruling.

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